

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): TELEPHONE NO.: _____ FAX NO. (Optional): _____ E-MAIL ADDRESS (Optional): _____ ATTORNEY FOR (Name): _____	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF _____ STREET ADDRESS: _____ MAILING ADDRESS: _____ CITY AND ZIP CODE: _____ BRANCH NAME: _____	
☐ ESTATE ☐ CONSERVATORSHIP ☐ GUARDIANSHIP OF (Name): _____ ☐ DECEDENT ☐ CONSERVATEE ☐ MINOR	
REPORT OF SALE AND PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY ☐ and Sale of Other Property Sold as a Unit	
CASE NUMBER: _____	
HEARING DATE AND TIME: _____	DEPT.: _____

1. **Petitioner** (name of each):

is the ☐ personal representative ☐ conservator ☐ guardian of the estate of the decedent, conservatee, or minor
☐ purchaser (30 days have passed since the sale) (Attach supporting declaration (Prob. Code, § 10308(b).))

and **requests** a court order for (check all that apply):

- a. ☐ confirmation of sale of the estate's interest in the real property described in Attachment 2e
- b. ☐ confirmation of sale of the estate's interest in other property sold as a unit as described in Attachment 2c.
- c. ☐ approval of commission of (specify): _____ % of the amount of: \$ _____
- d. additional bond ☐ is fixed at: \$ _____ ☐ is not required.

2. **Description of property sold**

- a. Interest sold: ☐ 100% ☐ Undivided (specify): _____ %
- b. ☐ Improved ☐ Unimproved
- c. ☐ Real property sold as a unit with other property (describe in Attachment 2c).
- d. Street address and location (specify): _____

e. Legal description is affixed as Attachment 2e.

3. **Appraisal**

- a. Date of death of decedent or appointment of conservator or guardian (specify): _____
- b. Appraised value at above date: \$ _____
- c. Reappraised value within one year before the hearing: \$ _____ ☐ Amount includes value of other property sold as a unit. (If more than one year has elapsed from the date in item 3a to the date of the hearing, reappraisal is required.)
- d. Appraisal or reappraisal by probate referee ☐ has been filed ☐ will be filed
☐ has been waived by order dated: _____

4. **Manner and terms of sale**

- a. Name of purchaser and manner of vesting title (specify): _____
- b. ☐ Purchaser is the ☐ personal representative ☐ attorney for the personal representative.
- c. Sale was ☐ private ☐ public on (date): _____
- d. Amount bid: \$ _____ Deposit: \$ _____
- e. Payment ☐ Cash ☐ Credit (specify terms on Attachment 4e.)
- f. ☐ Other terms of sale (specify terms on Attachment 4f.)
- g. ☐ Mode of sale specified in will. ☐ Petitioner requests relief from complying for the reasons stated in Attachment 4g.
- h. ☐ Terms comply with Probate Code section 2542 (guardianships and conservatorships).

☐ ESTATE ☐ CONSERVATORSHIP ☐ GUARDIANSHIP OF	CASE NUMBER:
(Name):	

5. Commission

- a. ☐ Sale without broker
- b. ☐ A written ☐ exclusive ☐ nonexclusive contract for commission was entered into with (name):
- c. ☐ Purchaser was procured by (name):
a licensed real estate broker who is not buying for his or her account.
- d. ☐ Commission is to be divided as follows:

6. Bond

- a. Amount before sale: \$ ☐ none.
- b. Additional amount needed: \$ ☐ none.
- c. ☐ Proceeds are to be deposited in a blocked account. Receipts will be filed. (Specify institution and location):

7. Notice of sale

- a. ☐ Published ☐ Posted as permitted by Probate Code section 10301 (\$5,000 or less)
- b. ☐ Will authorizes sale of the property
- c. ☐ Will directs sale of the property

8. Notice of hearing

- a. Special devisee:
- (1) ☐ None.
- (2) ☐ Consent to be filed.
- (3) ☐ Written notice will be given.
- c. Personal representative, conservator of the estate, or guardian of the estate:
- (1) ☐ Petitioner (consent or notice not required).
- (2) ☐ Consent to be filed.
- (3) ☐ Written notice will be given.
- b. Special notice:
- (1) ☐ None requested.
- (2) ☐ Has been or will be waived.
- (3) ☐ Required written notice will be given.

9. Reason for sale (need not complete if item 7b or 7c checked)

- a. ☐ Necessary to pay
- (1) ☐ debts
- (2) ☐ devise
- (3) ☐ family allowance
- (4) ☐ expenses of administration
- (5) ☐ taxes

- b. ☐ The sale is to the advantage of the estate and in the best interest of the interested persons.

10. Formula for overbids

- a. Original bid: \$ _____
- b. 10% of first \$10,000 of original bid: \$ _____
- c. 5% of (original bid minus \$10,000): \$ _____
- d. Minimum overbid (a + b + c): \$ _____

11. Overbid. Required amount of first overbid (see item 10): \$ **12. Petitioner's efforts** to obtain the highest and best price reasonably attainable for the property were as follows
(specify activities taken to expose the property to the market, e.g., multiple listings, advertising, open houses, etc.):

13. Number of pages attached: _____

Date: _____

(TYPE OR PRINT NAME OF ATTORNEY)

(SIGNATURE OF ATTORNEY*)

* (Signature of all petitioners also required (Prob. Code, § 1020).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)